

District- Gazipur

In the Supreme Court of Bangladesh
High Court Division
(Criminal Miscellaneous Jurisdiction)

Criminal Misc. Case No. _____ of 2024

In the matter of:

An application under section 498 of the Code of Criminal Procedure.

-And-

In the matter of:

Md. Shamim

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Md. Shamim, Advocate

.... For the accused-Petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 11th February 2024

This is an application under Section 498 of the Code of Criminal Procedure for bail.

In this case under Sections 396/412 of the Penal Code the accused petitioner prays for his bail on the ground of long custody since 05.09.2021.

The petitioner has made a confession under Section 164 of the Code of Criminal Procedure wherein he has confessed to have participated in the commission of dactioity and murder. But we are surprised to see that the case has not yet been transferred to the Court of session for trial.

Accordingly, we are directing the learned Chief Metropolitan Magistrate, Gazipur to ensure that this case is ready for trial and sent to the Court of Metropolitan Session Judge, Gazipur for trial within 3(three) months from the date of receipt of this order but if he fails to comply this order he will have to explain in writing to this Court through the Registrar General, Supreme Court of Bangladesh as to why this order could not be implemented.

With above direction this application is disposed of.

Let a copy of this order be transmitted to the Court concerned at once.

MD. MASUDUR RAHMAN
BENCH OFFICER